

26STCV05049 26STCV05049

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-30

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[TENTATIVE]

ORDER RE: DEFENDANT GATES, GONTER, GUY, PROUDFOOT & MUENCH, LLP'S MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED COMPLAINT

Background Facts

Plaintiff

Laura Yang ("Plaintiff") sues Defendants State Farm Mutual Automobile Insurance Company ("State Farm"), Gates, Gonter, Guy, Proudfoot & Muench, LLP ("G3PM"), and Does 1-25 pursuant to a May 6, 2026, First Amended Complaint ("FAC") alleging claims of: (1) Breach of Written Contract, (2) Breach of Implied Covenant of Good Faith and Fair Dealing, and (3) Declaratory Relief against State Farm; and (4) Professional Negligence and (5) Breach of Fiduciary Duty against G3PM.

The claims

arise from allegations that, among other things, Plaintiff was covered under a State Farm policy that was triggered when Plaintiff was part of a multi-vehicle accident, with State Farm hiring G3PM to represent Plaintiff in that action (Veronica Aguirre Jaimes V. Lopez-Becerra, et al., Los Angeles County Superior Court, Case No. 23STCV12413 (the "Underlying Action")) and both Defendants acting in manners that breached their duties to Plaintiff.

Now before

the Court is G3PM's opposed (1) demurrer against the FAC's negligent malpractice and breach of fiduciary duty claims—the sole two claims alleged in the FAC against G3PM—and (2) motion to strike a punitive damages prayer as alleged against G3PM.

Demurrer

a.

Meet and

Confer

G3PM

provides evidence showing that it met its meet and confer obligation prior to filing the present demurrer, as required by the Code of Civil Procedure.

(Demurrer, Friedman Decl., ¶¶ 2-5; see Code Civ. Proc., § 430.41.)

b.

Request for

Judicial Notice

The Court

declines to take judicial notice of the lack of a complaint in the Underlying Action, as such notice is not necessary for disposition of the demurrer before the Court.

c. Legal Standard

A demurrer

for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see Code Civ. Proc., § 430.10, subd. (e).)

To

sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing

the sufficiency of the cause of action, the demurrer admits the truth of all

material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A demurrer may only be used to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in *White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 521.

d.

Discussion

After review, the Court finds in favor of G3PM.

Here, the only two claims alleged in the FAC against G3PM—the fourth cause of action

for professional negligence and the fifth cause of action for breach of fiduciary duty—both

require Plaintiff to plead and ultimately prove that G3PM's alleged breach of duty proximately

caused Plaintiff's damages. (See, e.g., *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797,

[generic elements of a tort claim include wrongdoing, causation, and harm]; *Mattco Forge,*

Inc.

v. Arthur Young & Co. (1997) 52 Cal.App.4th 820, 833 [professional negligence requires a

proximate

causal connection between the negligent conduct and the resulting injury, together

with

actual loss or damage]; *Wittenberg v. Bornstein* (2020) 50 Cal.App.5th 303, 312, fn. 7

[breach

of fiduciary duty requires damages proximately caused by the breach].) "*Viner v. Sweet* (2003) 30

Cal.4th

1232, 1241 ('the plaintiff must establish that but for the alleged malpractice, it is more likely than not

that the plaintiff would have obtained a more favorable result')."

Illustrative is *Orrick Herrington & Sutcliffe LLP v. Superior Court* (2003) 107

Cal.App.4th

1052. There, the plaintiff alleged that his attorneys negligently advised him to enter

into

a defective marital settlement agreement and sought, among other things, to recover the

attorney

fees incurred in attempting to set aside that agreement. (*Id.* at pp. 1055-1056.) The

Court

of Appeal held that those damages were not recoverable because the plaintiff failed to

establish

that, but for the attorneys' alleged negligence, he would have obtained a more favorable

result.

(Id. at pp. 1057-1060.) The court explained where the alleged malpractice concerns

the

prosecution or defense of litigation, the plaintiff ordinarily must establish causation through

the

"case-within-a-case" methodology by demonstrating that competent representation would

have produced a better outcome. (Id. at p. 1059.)

Turning to the FAC, the gravamen of Plaintiff's allegations against G3PM is that G3PM

negligently

represented Plaintiff in the Underlying Action by agreeing to a settlement allegedly

inconsistent

with Plaintiff's conditional consent, failing to advise Plaintiff regarding conflicts of

interest,

and failing to protect Plaintiff's interests concerning potential underinsured motorist

("UIM")

benefits and future litigation exposure. (FAC, ¶¶ 39-45, 72-77.) Accordingly,

because

Plaintiff's

claims arise from G3PM's alleged handling of the defense of the Underlying Action,

the

but-for causation principles discussed in Orrick apply.

However, even assuming Plaintiff adequately alleges the loss or impairment of UIM

benefits

or other insurance rights, the FAC fails to plead facts establishing that those alleged

losses

were proximately caused by G3PM's conduct. Merely alleging the loss or impairment of

insurance

rights does not establish legal causation. Rather, Plaintiff must allege facts

demonstrating

that, but for G3PM's alleged negligence, Plaintiff would have preserved those

benefits

or otherwise obtained a more favorable result in the Underlying Action. The FAC

instead

alleges only the conclusory assertion that Plaintiff "would have preserved UIM rights,"

without

alleging any supporting facts explaining how G3PM's alleged conduct caused the loss of

those

rights.

Nor does the FAC adequately allege that Plaintiff has sustained an actual, present injury.

Although Plaintiff alleges the loss or impairment of UIM benefits, increased litigation exposure,

and present economic injury, the FAC contains no factual allegations demonstrating that Plaintiff

has suffered an excess judgment, incurred an actual monetary payment or other out-of-pocket

loss attributable to G3PM's alleged conduct, received a denial of UIM benefits, or otherwise

sustained a concrete economic injury. Instead, the FAC alleges only the possibility that the

Underlying Action may ultimately result in liability beyond Plaintiff's policy limits or otherwise

impair Plaintiff's rights. Such allegations of possible future exposure are speculative and are

insufficient, as pleaded, to establish present damages proximately caused by G3PM's alleged

misconduct.

Moreover, although Plaintiff separately labels the fifth cause of action as one for breach

of

fiduciary duty, that claim is predicated upon the same alleged misconduct and seeks the same

litigation-related

damages as the professional negligence claim. Accordingly, the same but-for

causation

principles apply. Plaintiff cannot avoid the requirement of pleading proximate

causation

merely by characterizing the alleged misconduct as a breach of fiduciary duty rather

than

legal malpractice.

Accordingly, the FAC fails to allege facts demonstrating that, absent G3PM's alleged

negligence,

Plaintiff would have obtained a more favorable result in the Underlying Action,

preserved

her UIM benefits or otherwise avoided the claimed losses. Because the FAC alleges

only

conclusory assertions of causation and speculative future damages, it fails to plead the

essential

element of but-for causation necessary to state claims for professional negligence and

breach

of fiduciary duty against G3PM.

e.

Conclusion

Defendant Gates, Gonter, Guy, Proudfoot & Muench, LLP's
demurrer to the fourth and

fifth causes of action is SUSTAINED, WITH
LEAVE TO AMEND. (Code Civ. Proc., §

430.41, subd. (e)(1).)

Motion to Strike

a.

Meet and
Confer

G3PM

provides evidence showing that it met its meet and confer obligation prior to
filing the present motion, as required by the Code of Civil Procedure. (Motion,
Friedman Decl., ¶¶ 2-5; see Code Civ. Proc., § 435.5.)

b.

Request for
Judicial Notice

The Court

declines to take judicial notice of the lack of a complaint in the Underlying
Action, as such notice is not necessary for disposition of the motion before
the Court.

a. Legal Standard

The court

may, upon a motion or at any time in its discretion and upon terms it deems
proper: (a) strike out any irrelevant, false, or improper matter inserted in
any pleading; or (b) strike out all or any part of any pleading not drawn or
filed in conformity with the laws of California, a court rule, or an order of
the court. (Code Civ. Proc. § 436, subds. (a), (b).)

For purposes

of a motion to strike pursuant to Sections 435 to 437 of the Code of Civil
Procedure, the term “pleading” generally means a demurrer, answer, complaint,

or cross-complaint, (Code Civ. Proc., § 435, subd. (a)), and an immaterial allegation or irrelevant matter in a pleading entails (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, or (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint (Code Civ. Proc., § 431.10, subds. (b)(1)-(3), (c)).

b.

Discussion

As the Court

has sustained G3PM's demurrer to the sole two claims alleged against it in the FAC, any punitive damages prayed for in the FAC as against G3PM are not supported by the FAC's remaining claims, which are limited to State Farm, supporting G3PM's requested relief.

c.

Conclusion

Defendant

Gates, Gonter, Guy, Proudfoot & Muench, LLP's motion to strike is GRANTED, with leave to amend. (Code Civ. Proc., § 435.5, subd. (e)(1).)

Defendant

Gates, Gonter, Guy, Proudfoot & Muench, LLP is ordered to give notice.

Parties

who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.